IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
PRINCIPAL BENCH

Item No. 1
(CAA)-131(PB)/2018

IN THE MATTER OF:
Digital Think (India) Pvt. Ltd. with
Convergys India Services Pvt. Ltd. .... Applicant/petitioner

Order under Section 230-232 of the Companies Act

Order delivered on 25.04.2019

Coram:
CHIEF JUSTICE (RTD.) M. M. KUMAR
HON'BLE PRESIDENT

SH. S. K. MOHAPATRA
HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Petitioner(s):-	Mr. Vinnet K. Chaudahry, PCS, Mr. Videh Vaish, Advs.
For the RD(NR)	Ms. Sonam Sharma, CP
For the OL	Mr. Subham Pandey, Adv.
For the IT	Mr. Deepak Anand, Mr. Aayushman V., Advs.

ORDER

The following clarifications need to be specified by the petitioner:-

"It is seen from the record that the petitioners were directed to carry out publication of the notice of next date of hearing of present second motion petition vide order dated 14.09.2018. The petitioner companies were also directed to file affidavit of service at least 7 days before the returning date of hearing in relation to paper publication effected as well as service of notices on the Authorities specified in the order including the Sectoral Regulators, if any.

A perusal of the case records shows that there has been non-compliance of order dated 14.09.2018 inasmuch as no paper publication has been shown/enclosed. There has been no mention of

any applicable sectoral regulators also. No affidavit in compliance of order dated 14.09.2018 has been filed."

The applicant companies are directed to do the needful within a week hereof.

List the matter on 02.05.2019.

—Sd—

(M. M. KUMAR)
PRESIDENT

—Sd—

(S. K. MOHAPATRA)
MEMBER (TECHNICAL)

25.04.2019.
Aarti Makker